Township of
NIPISSING
"Life the way it should be"

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REPORT TO COUNCIL

Date: December 6, 2022

From: Kris Croskery-Hodgins, Municipal Administrator

Re: Boundary Road Agreement Renewal with Municipality of Callander

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BACKGROUND/OVERVIEW

In July 2014, Council authorized a renewal of a Joint Jurisdiction Highway and Connecting Road Routine Maintenance and Repair Agreement with the Municipality of Callander. The previous agreement had been authorized in 2008.

This agreement provides for the routine maintenance and capital repair requirements and responsibilities on connecting roads shared with Callander.

FINANCIAL IMPACT

There is no monetary amount associated with the continuance of this agreement outside of the continued operational costs of road maintenance.

Capital construction costs on any shared road shall be shared equally between the municipalities, after prior mutual agreement, as required.

SUMMARY

This shared service is beneficial to both municipalities and has a successful history of providing maintenance efficiencies and a productive working arrangement.

RECOMMENDATION:

That Council authorize the renewal of this agreement.

Respectfully,

Kris Croskery-Hodgins, Municipal Administrator

JOINT JURISDICTION
HIGHWAY and CONNECTING ROAD ROUTINE MAINTENANCE AND REPAIR AGREEMENT
("Agreement")

BETWEEN

The Corporation of the Municipality of Callander

(hereinafter referred to as "Callander") OF THE FIRST PART

-and-

The Corporation of the Township of Nipissing

(hereinafter referred to as "Nipissing") OF THE SECOND PART

WHEREAS Callander passed By-law No. 2014-1419 and Nipissing passed By- Law No. 2014-31 in accordance with s.27(2) of the *Municipal Act, 2001* with respect to Highways under their Joint Jurisdiction (as herein defined);

AND WHEREAS pursuant to subsection 29.1(2) of the *Municipal Act, 2001,* each municipality has jurisdiction over that part of the Highway that it has agreed to keep in repair and is liable for any damages that arise from the failure to keep the Highway in repair and the other municipality is relieved from all liability in respect of the repair of that part;

AND WHEREAS the parties wish to provide for a means of dealing with certain Connecting Roads (as herein defined);

NOW THEREFORE in consideration of the covenants contained herein and for good and valuable consideration, the sufficiency of which is hereby acknowledged, the parties hereto agree each with the other as follows:

1.0 DEFINITIONS

1.1 "Agreement" means this Joint Jurisdiction Highway and Connecting Road Routine Maintenance and Repair (M&R) Agreement, including the following Schedules:

I. Schedule "A" - "Callander Joint Jurisdiction Highways";
II. Schedule "B" - "Nipissing Joint Jurisdiction Highways";
III. Schedule "C" - "Callander Connecting Roads";
IV. Schedule "D" - "Nipissing Connecting Roads".

1.2 "Business Day" means any day other than a Saturday, Sunday, public holiday, or other day on which banks in Ontario are authorized or required by law to be closed, or a day on which the administrative offices of the Callander or Nipissing are closed.

1.3 "Capital Improvement" means any work that is outside of the Routine M&R as required by this Agreement and which materially improves and enhances any part of a Highway.

1.4 "Connecting Road" means a Highway or part thereof that lies within one municipality for which the other municipality agrees to perform Routine M&R in accordance with this Agreement.

1.5 "Contract Administrator" means an individual appointed by a municipality, or his/her designate, to oversee the administration of the Agreement.

1.6 "Highway" includes a common and public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct or trestle, any part of which is intended for or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof.

1.7 "Joint Jurisdiction" has the meaning described in s.29 of the *Municipal Act, 2001*.

1.8 "OSIM" means the "Ontario Structure Inspection Manual (OSIM)", by the Ministry of Transportation, Policy Planning & Standards Division, Engineering Standards Branch, Bridge Office (October, 2000); as amended.

1.9 "Road Construction" means the building and rebuilding of Highways or parts of Highways. Road Construction does not mean or include Routine M&R.

1.10 "Routine M&R" means those activities completed in the routine maintenance and repair of a Highway, as contemplated in the *Municipal Act, 2001*, S.O. 2001, c.25, as amended and all applicable regulations, including without limitation, *the Minimum Maintenance Standards for Municipal Highways Regulation,* O.Reg. 239/02, as amended and as they exist from time to time, or any successor regulation(s) or statute(s) (collectively referred to as the *"Maintenance Legislation")*, and which shall be conducted in accordance with the specifications contained in the *Maintenance Legislation* and in this Agreement. For greater certainty, Routine M&R does not include Capital Improvements or Road Construction.

1.11 "Structure" means a bridge, culvert, tunnel, retaining wall or sign support, as those terms are defined in the OSIM.

2.0 JOINT JURISDICTION HIGHWAY

2.1 Callander agrees to carry out Routine M&R in respect of all the Joint Jurisdiction Highways or parts thereof described in Schedule "A" of this Agreement.

2.2 Nipissing agrees to carry out Routine M&R in respect of all the Joint Jurisdiction Highways or parts thereof described in Schedule "B" of this Agreement.

3.0 SUMMER ROUTINE M&R STANDARDS - JOINT JUIRISDICTION HIGHWAYS

3.1 Callander and Nipissing shall perform all Summer Routine M&R for their respective jurisdictions, as outlined in **s.2.0** of this Agreement, in accordance with the requirements of the *Maintenance Legislation* at a minimum. Higher standards for Summer Routine M&R may be agreed to in writing between the parties forming part of this Agreement.

4.0 WINTER ROUTINE M&R STANDARDS - JOINT JURISDICTION HIGHWAYS

4.1 Callander and Nipissing shall perform all Winter Routine M&R for their respective jurisdictions, as outlined in **s.2.0** of this Agreement, in accordance with the requirements of the *Maintenance Legislation* at a minimum. Higher standards for Winter Routine M&R may be agreed to in writing between the parties forming part of this Agreement.

5.0 CONNECTING ROADS

5.1 Callander agrees to carry out Routine M&R in respect of all the Connecting Roads or parts thereof described in Schedule "C" of this Agreement.

5.2 Nipissing agrees to carry out Routine M&R in respect of all the Connecting Roads or parts thereof described in Schedule "D" of this Agreement.

5.3 Callander and Nipissing shall perform all Summer Routine M&R for in accordance with the requirements of the *Maintenance Legislation* at a minimum.

5.4 Callander and Nipissing shall perform all Winter Routine M&R for in accordance with the requirements of the *Maintenance Legislation* at a minimum.

5.5 Callander agrees to bear the entirety of the cost of Routine M&R for the Highways listed on Schedule "C".

5.6 Nipissing agrees to bear the entirety of the cost of Routine M&R for the Highways listed on Schedule "D".

5.7 Notwithstanding any other provision of this Agreement, each party shall be responsible and liable for all other maintenance and repair and other work relating to a Connecting Road within its geographical area, including without limitation, any Routine M&R and OSIM inspections with respect to Structures, as well as any Capital Improvement and/or Road Construction.

5.8 Callander and Nipissing shall retain jurisdiction over any Connecting Road within its original jurisdiction, irrespective of whether Routine M&R for that Connecting Road is performed by the other party to this Agreement.

5.9 Notwithstanding any other provisions in this Agreement, Capital Improvement work of any kind and/or Road Construction relating to any Connecting Road outlined in Schedules "C" and "D" shall not be undertaken by either party within its boundary without properly notifying the other municipality as soon as can be reasonably expected and obtaining written consent from both parties.

6.0 ROUTINE M&R - STRUCTURES

6.1 Callander agrees to carry out all Routine M&R required in accordance with the Winter Routine M&R Standards or Summer Routine M&R Standards as applicable outlined in this Agreement, including, without limitation, biennial structure inspections as required by the OSIM on all Structures, situated in or along the Highways or parts thereof described in Schedule "A" of this Agreement. Biennial

OSIM Structure inspection reports will be provided to Nipissing upon completion by Callander.

6.2 Nipissing agrees to carry out all Routine M&R required in accordance with the Winter Routine M&R Standards, or Summer Routine M&R Standards, as applicable, outlined in this Agreement, including biennial structure inspections as required by the OSIM on all Structures, situated in or along the Highways or parts thereof described in Schedule "B" of this Agreement. Biennial OSIM structure inspection reports will be provided to the Callander upon completion by Nipissing.

7.0 COST OF WORK REQUIRED BY THIS AGREEMENT

7.1 Callander agrees to bear the entirety of the cost of Routine M&R for the Highways listed on Schedule "A".

7.2 Nipissing agrees to bear the entirety of the cost of Routine M&R for the Highways listed on Schedule "B".

7.4 Notwithstanding any other provision in this Agreement, Capital Improvement work of any kind and/or Road Construction relating to any Highway outlined in Schedules A and B of this Agreement shall not be undertaken by either party without the prior approval of the Councilsof both municipalities. What constitutes a Capital Improvement for the purposes of this Agreement shall be as agreed between the parties on a project-by-project basis. The parties agree that in the event a project is agreed to be a Capital Improvement, or constitutes Road Construction, the parties shall agree in writing upon the basis of cost-sharing for that project prior to the implementation of said project.

8.0 INDEMNIFICATION

8.1 Callander covenants and agrees that it shall indemnify, defend and save harmless Nipissing from any liability, cost, demands, damages, expenses, claims and suits arising out of or in any way related to the obligations of the Callander to carry out the work or otherwise meet the obligations provided for in this Agreement, including the failure to perform such work adequately or at all, except to the extent that same is caused by the negligence or willful misconduct of Nipissing. This indemnity shall survive the early termination or expiry of this Agreement.

8.2 Nipissing covenants and agrees that it shall indemnify, defend and save harmless the Callander from any liability, cost, demands, damages, expenses, claims and suits arising out of or in any way related to the obligations of Nipissing to carry out the work or otherwise meet the obligations provided for in this Agreement, including the failure to perform such work adequately or at all, except to the extent that same is caused by the negligence or willful misconduct of the Callander. This indemnity shall survive the early termination or expiry of this Agreement.

8.3 Notwithstanding anything to the contrary contained in this Agreement, and subject to any applicable legislation and the ability of a party to protect its own rights in the face of litigation against that party, each party agrees to assist the other party in a timely manner in terms of the provision of information relevant to any claims that are made against the other party with respect to either party's obligations assumed under this Agreement.

9.0 RECIPROCAL INSURANCE

9.1 During the term of this Agreement, each party shall obtain and maintain in full force and effect, Comprehensive General Liability Insurance naming the other party as an additional insured regarding their respective obligations under the Agreement. Each party shall also maintain Automobile Liability Insurance for owned vehicles and Non-Owned Automobile Liability Insurance for non-owned vehicles as may be used under this Agreement. Each of the averages shall have limits of not less than Five Million Dollars ($5,000,000) and shall be issued by insurance companies licensed to carry on business in the Province of Ontario.

9.2 Upon request, each party shall deposit with the Contract Administrator for the other party such evidence of its insurance as provided in or required under this Agreement. Each party shall take all reasonable steps to not do or omit to do anything that would impair or invalidate the insurance policies.

9.3 The insurance coverage shall in no manner discharge, restrict or limit the liabilities and obligations assumed by the parties under this Agreement.

10.0 NOTICE, CONTRACT ADMINISTRATION AND AMENDMENT

10.1 Each party has appointed the following to act as Contract Administrator for that party:

For Callander

Tim McKenna
Manager of Operations
100 Nipissing Street, Callander, ON P0H 1HO
Phone: 705-752-1410 Ext. 301
Email: tmckenna@callander.ca

For Nipissing

Dan MacInnis
Operations Superintendent
27 Beatty Street, Nipissing, ON P0H 1W0
Phone: 705-724-2144 Ext. 224
Email: roads@nipissingtownship.com

10.2 Any notice provided for under this Agreement shall be in writing and shall be sufficiently given if delivered personally, or if transmitted by facsimile with an original signed copy sent by prepaid registered mail within forty-eight (48) hours thereafter, or if mailed by prepaid registered mail to the addresses above, or at such other address or facsimile number as the party to whom such notice is to be given otherwise directs in writing. Any notice delivered aforesaid shall be effective on the date of the personal delivery, or on the date of facsimile transmission, and any notice mailed as aforesaid shall be effective three (3) Business Days after the mailing thereof, provided that where interruption of mail services is likely by reason of any strike or other labour dispute, notice shall be given by personal delivery or facsimile transmission.

10.3 Each Contract Administrator shall ensure that detailed maintenance and communications logs and other records relevant to the Routine M&R requirements of this Agreement ("Maintenance Records") are maintained with respect to the respective parties' obligations under this Agreement. These Maintenance Records shall be available for review and/or copying by the other municipality upon request and during regular business hours. Any records reviewed and/or copied pursuant to this provision shall be kept in the strictest of confidence, subject only to the requirements of applicable privacy and freedom of information laws and any other provision of this Agreement.

10.4 The Contract Administrators shall meet on a regular basis and in any event, no less than once every six (6) months, in order to discuss issues arising due to the obligations contained in this Agreement.

10.5 Each Contract Administrator shall be responsible for providing the other party with written notice as soon as reasonably aware of the following:

I. The amalgamation of one party's jurisdiction with another jurisdiction;
II. Any proposed change of name or reorganization of one party's jurisdiction;
III. Any proposed change of name of any Highway;
IV. Any proposed change of speed limits of any Highway;
V. Any changes, additions or removal of any signs of any Highway.

10.6 In the event of any changes identified in **10.S(iii), (iv) and (v),** the party proposing to make the change shall not make said change without obtaining the prior written consent of the other party, which consent shall not be unreasonably withheld.

10.7 In the event of any authorized changes identified in **10.S(i), (ii) and (iii),** this Agreement shall be amended accordingly.

10.8 For greater certainty, the changes identified in **10.5(iv) and (v)** shall not require an amendment to this Agreement.

10.9 For greater certainty, any changes and/or amendments to this Agreement, including without limitation, any changes to Routine M&R conducted by either or both parties, shall be approved by the Council of each party respectively.

11.0 DISPUTE RESOLUTION

11.1 In the event of a dispute between the parties to the Agreement arising pursuant to this Agreement, the Contract Administrators agree to engage in good faith negotiations with a view to resolving the dispute.

11.2 In the event the Contract Administrators are unable to resolve a dispute within twenty (20) days as of the date the dispute arose, the parties agree to appoint a Committee comprised of three (3) members per party ("Dispute Committee") in order to resolve the dispute.

11.3 In the event the Dispute Committee is unable to resolve the dispute within thirty (30) days as of the date the dispute was brought before the Dispute Committee, the parties agree to submit to arbitration under the rules of the *Arbitration Act, 1991,* S.O. 1991, c.17, as amended and as it exists from time to time.

11.4 Nothing contained herein shall be construed as waiving any additional rights in law or in equity of either party with respect to this Agreement.

13.0 INTERPRETATION

13.1 This Agreement contains the entire understanding between the parties with respect to the subject matter contained herein. All other responsibilities, duties, liabilities or other rights and/or powers of the respective jurisdictions, statutory or otherwise, remain unaffected unless specifically addressed herein.

13.2 Where there is any conflict between any provision of this Agreement and any provision of the *Municipal Act, 2001* as amended, the provision of the *Municipal Act, 2001* shall prevail to the extent of the conflict.

14.0 GENERAL PROVISIONS

14.1 This Agreement comes into force on the day of its execution by both parties hereto authorized by By-law and shall continue in force for a period of five (5) years therefrom. Unless terminated in accordance with **s.14.3,** this Agreement shall automatically renew every year for another five (5) years up to a maximum of ten (10) years.

14.2 No amendment or variation to this Agreement or of any of the terms hereof shall be binding upon the parties hereto, unless the same is in writing and properly authorized and executed by both parties to this Agreement.

14.3 This Agreement may be terminated by either party upon six (6) months prior written notice to the Contract Administrator of the other party.

14.4 This Agreement shall be construed in accordance with the laws of the Province of Ontario and the laws of Canada applicable therein.

14.5 This Agreement shall not be assigned by either party without the prior written consent of the other party.

14.6 It is understood and agreed by the parties hereto that they are and shall be independent contractors and that nothing herein is intended to make either party an agent, legal representative, subsidiary, joint venture, fiduciary, employee, or servant of the other for any purpose.

14.7 All references to a day or days in this Agreement shall mean a Business Day or Business Days.

15.0 DEFAULT

15.1 Notwithstanding any of the foregoing, in addition to any other remedies available at law or in equity, in the event that one party defaults in the performance of its obligations under this Agreement, the other party has the option of performing said obligations to the extent of the deficiency and charging the defaulting party for said services, including without limitation, all personnel, administrative and/or other related costs thereto.

15.2 No consent or waiver, express or implied, by any party hereto of any breach or default by any other party hereto in the performance of its obligations hereunder shall be deemed to or construed to be a consent to or waiver of any other breach or default in the performance by such other party of the same or any other obligations of such party hereunder. Failure on the part of any party to complain of any act or failure to act of any other party or to declare the other party in default, irrespective of how long such failure continues, shall not constitute a waiver by the first mentioned party of its rights hereunder.

IN WITNESS WHEREOF the Corporate Seals of each of the parties hereto have been affixed duly attested by the respective authorized signing officers:

EXECUTED IN QUADRUPLICATE

Callander

X _____

Approved as to Content
Manager of Operations Callander

X _____

Robb Noon, Mayor

Per:

X _____

Elaine Gunnell, Clerk

Per:

[I have the authority to bind the corporation]

Nipissing

X _____

Approved as to Content
Operations Superintendent Nipissing

X _____

Tim Piper, Mayor

Per:

X _____

Kris Croskery Hodgins: Municipal Administrator

Per:

[I have the authority to bind the corporation]

Schedule "A"

CALLANDER SCHEDULE OF JOINT JURISDICTION HIGHWAYS

1. The Municipality of Callander agrees to perform winter maintenance on Waltonian Drive situate and lying in both Municipalities as shown on Registered Plan 42M-521 and Parts 1, 2 and 3 or Plan 42R-7812 in the Municipality of Callander and Registered Plan M-510 in the Township of Nipissing on an alternate annual basis as follows:

   2023-2024

   2025-2026

   2027-2028

2. That the Municipality of Callander agrees to maintain and keep in repair the boundary road between Concessions 13 and 14 of the Township of Nipissing and Concessions 21 and 22 of the Municipality of Callander referred to as Hart Road.

3. The winter maintenance shall include sanding, snowplowing and thawing culverts.

4. That summer maintenance will be the responsibility of the respective municipalities.

Schedule "B"

NIPISSING SCHEDULE OF JOINT JURISDICTION HIGHWAYS

1. The Township of Nipissing agrees to perform winter maintenance on Waltonian Drive situate and lying in both Municipalities as shown on Registered Plan 42M-521 and Parts 1, 2 and 3 or Plan 42R-7812 in the Municipality of Callander and Registered Plan M-510 in the Township of Nipissing on an alternate annual basis as follows:

   2024-2025

   2026-2027

   2028-2029

2. That the Township of Nipissing agrees to maintain the boundary road between Concessions 11 and 12 of the Township of Nipissing and Concessions 19 and 20 of the Municipality of Callander referred to as Hart Road.

3. The winter maintenance shall include sanding, snowplowing and thawing culverts.

4. That summer maintenance will be the responsibility of the respective municipalities.

Schedule "C"

CALLANDER SCHEDULE OF CONNECTING HIGHWAYS

1. That the Municipality of Callander agrees to winter maintenance which shall include sanding and snowplowing on Birchgrove Road to Marion Drive.

Schedule "D"

NIPISSING SCHEDULE OF CONNECTING HIGHWAYS

1. That the Township of Nipissing agrees to sweep the debris on Waltonian Drive.